

# **SOURCES SOUGHT NOTICE**

## **REGULATORY WRITING SERVICES**

### **FINANCIAL CRIMES ENFORCEMENT NETWORK**

#### **INTRODUCTION AND BACKGROUND**

This Sources Sought Notice (SSN) is issued by the Treasury Common Services Center (TCSC), Division of Procurement Services, on behalf of the Financial Crimes Enforcement Network (FinCEN). The purpose of this notice is to obtain industry information and identify potential sources that are capable of and interested in providing commercial regulatory writing services, as described herein. This notice is issued for acquisition planning and market research purposes only.

#### **SCOPE AND OBJECTIVES**

FinCEN seeks to identify contractors that can provide expert regulatory writing and related analytical and technical services to support the U.S. Department of the Treasury in developing regulatory documents, guidance, Federal Register notices, reports, and associated materials required under the Anti-Money Laundering Act of 2020 (AMLA) and the Guiding and Establishing National Innovation for U.S. Stablecoins Act (GENIUS Act). Services are to be performed on site at Treasury locations in Washington, DC, and Vienna, VA. Any remote work must be approved in writing in advance by the Contracting Officer's Representative (COR). An active Secret facility security clearance is required. The scope of work includes supporting Treasury staff with the following:

- Conduct research and analysis to support the development of regulatory policy proposals.
- Draft and recommend revisions to policy memoranda and other public policy documents.
- Prepare briefing materials for internal and interagency review.
- Support interagency coordination, including documenting meetings.
- Process, catalog, categorize, analyze, and summarize public comments and regulatory text proposals submitted by commenters.
- Liaise with and support engagement with U.S. government stakeholders.
- Liaise with and support engagement with the U.S. private sector.
- Provide project management support for various regulatory initiatives.
- Ensure clarity, accuracy, and compliance with statutory and administrative requirements, as well as consistency with Treasury and FinCEN rulemaking policies.
- Support the preparation of regulatory impact analyses (RIAs) for rulemakings.

Services shall support the full life cycle of regulatory development at the direction of, and in coordination with, FinCEN staff. For proposed and final rulemaking documents, this includes research, drafting, revision and editing recommendations, interagency coordination, legal-analysis support, documentation of meetings and consultations, evaluation of comments on proposed rulemakings, status reporting, and facilitation of publication in the Federal Register. It also includes support for implementation of regulations, such as development of guidance and policy documents and maintenance of OMB control numbers and related requirements (for example, drafting supporting statements).

Interested contractors must be able to provide all products and services described in Appendix A of this notice.

#### **SUBMISSION GUIDELINES**

Submissions shall demonstrate the contractor's capability to meet the technical requirements described in this notice. Responding contractors shall provide a high-level capabilities statement

that includes a description of their standard lines of business, relevant experience, and a technical narrative addressing each of the products and services described herein.

In addition to the general capabilities statement and specific technical information, contractors shall provide the following information with their submissions:

1. Company name and address, point-of-contact information, Unique Entity Identifier (UEI), business size (small or other than small), and any applicable socioeconomic classifications, such as HUBZone small business, small disadvantaged business (SDB), women-owned small business (WOSB), veteran-owned small business (VOSB), service-disabled veteran-owned small business (SDVOSB), and participation in the SBA 8(a) Business Development Program, if applicable.
2. Whether the contractor's products or services are available through an existing Governmentwide contracting vehicle or solely in the open market. If available through one or more Governmentwide contracting vehicles, provide a complete list of those vehicles, including contract numbers.
3. Published price lists for these products or services (for example, GSA MAS, NITAAC, NASA SEWP, or commercial/in-house pricing), including the labor categories the contractor would use to perform these services.
4. Relevant past performance references for up to three (3) customers that have used the contractor's commercial regulatory writing services relevant to this notice.

### **DEADLINE FOR RESPONSES**

Contractors shall submit responses to this notice by email to [purchasing@fiscal.treasury.gov](mailto:purchasing@fiscal.treasury.gov) no later than May 13, 2026, at 3:00 p.m. ET. Responses shall reference "SS-FIN-26-032, ATTN: CCobb/TAshcroft" in the subject line of the email message.

All electronic materials and attachments shall be formatted in accordance with the Bureau of the Fiscal Service's security requirements. The following file extensions are not allowable, and materials submitted in these formats cannot be opened:

.bat, .cmd, .com, .exe, .pif, .rar, .scr, .vbs, .hta, .cpl, .html, .mhtml, and .zip

The Government does not allow third-party messaging systems or secure mail.

Microsoft Office non-macro-enabled documents are acceptable. If another format is necessary, the interested contractor shall verify with TCSC that the format is acceptable.

### **DISCLAIMERS**

This notice is issued in accordance with FAR Part 10. It is not a request for proposals (RFP) or request for quotations (RFQ), and it does not constitute a promise or imply an obligation on the part of the Government to issue a solicitation or make an award. No technical approach is being requested or will be evaluated at this time. This notice is issued solely to gather market research information regarding the availability of commercial sources.

The Government will not pay for any information or administrative costs incurred in responding to this notice. All costs associated with responding shall be borne solely by the responding contractor.

Contractors are solely responsible for properly marking and clearly identifying any proprietary information or trade secrets contained in their responses. Proprietary information received in response to this notice will be safeguarded and handled in accordance with the Trade Secrets Act (18 U.S.C. 1905). The Government will not be liable for consequential damages arising from information that is not properly marked and clearly identified.

No determination has been made regarding the viability of this potential requirement, and no solicitation is available. Requests for additional information or for a copy of a solicitation will not be considered affirmative responses to this posting. Telephone responses or inquiries will not be accepted.

Responses to this notice will not be considered for contract award. If a solicitation results from this notice, interested contractors must respond separately and formally to be considered for award.

This notice does not restrict the Government to a particular acquisition approach should an acquisition result from this notice.

Interested contractors may register at <https://sam.gov/content/opportunities> to receive notifications when information related to this requirement is posted, such as amendments made available for viewing or downloading. Please note that SAM.gov provides this notification service as a convenience and does not guarantee that all persons on a mailing list will receive notifications. Accordingly, TCSC recommends that contractors monitor SAM.gov for all information relevant to this acquisition.

## **Appendix A**

### **High-Level Technical Requirements for Commercial Regulatory Writing Services**

1. The contractor shall adhere to all applicable Federal laws and regulations related to the Federal rulemaking process, including, but not limited to, the following:

- Administrative Procedure Act (5 U.S.C. § 551 et seq.)
- Paperwork Reduction Act (44 U.S.C. § 3501 et seq.)
- Congressional Review Act (5 U.S.C. § 801 et seq.)
- Executive Orders 12866 ("Regulatory Planning and Review"), 13563 ("Improving Regulation and Regulatory Review"), 14192 ("Unleashing Prosperity Through Deregulation"), and 14219 ("Ensuring Lawful Governance and Implementing the President's Department of Government Efficiency Deregulatory Initiative")
- OMB Circular A-4 and related regulatory analysis requirements
- The Federal Register's Document Drafting Handbook
- Treasury and FinCEN internal policy, formatting requirements, and standards

FinCEN will provide access to necessary internal policy guidance and templates.

#### **2. Tasks**

##### **a. Regulatory and Policy Development and Drafting**

- 1) Assist with drafting and recommending revisions to policy and regulatory documents, including proposed and final rules, and support policy and technical analyses consistent with statutory mandates.
- 2) Support the translation of complex statutory, policy, and technical requirements into clear language.
- 3) As appropriate, revise draft documents based on feedback, legal review, and interagency and public comments.
- 4) Prepare draft briefing papers, policy memoranda, talking points, and executive summaries for review and approval.
- 5) Draft initial stakeholder communication materials, including fact sheets, FAQs, and guidance that may accompany or follow regulations.

##### **b. Regulatory and Policy Research and Analysis**

- 1) Assist in conducting research on statutory provisions, prior rulemakings, stakeholder impacts, and relevant statutory frameworks.
- 2) Prepare written analyses summarizing findings and recommending regulatory approaches.

##### **c. Interagency Consultation and Stakeholder Engagement Support**

- 1) Provide project management support, including monitoring the status of regulatory and policy documents and providing regular status updates or briefings to Treasury leadership.
- 2) Support interagency review of documents, including evaluating and responding to comments and redlines.
- 3) Assist with engagement with U.S. government stakeholders, including the Office of the Federal Register, the Office of Management and Budget, and the Office of Information and Regulatory Affairs.

- 4) Support the Regulatory Impact Analysis process, including analyzing the expected effects of rules and regulations, conducting cost-benefit analyses, and analyzing impacts related to the Paperwork Reduction Act.
- 5) Support and document engagements with members of the public.
- 6) Support and document engagements with the private sector.
- 7) Support and document meetings with stakeholders.

**d. Federal Register Materials and Engagement**

- 1) Support the delivery of Federal Register-ready draft documents, including notices regarding information collection, notices regarding forms, notices of proposed rulemaking, interim final rules, and final rules.
- 2) As appropriate, ensure formatting, style, and content comply with the Federal Register's Document Drafting Handbook and Treasury and FinCEN requirements.
- 3) Support submission of documents to the Federal Register.

**e. Public Comment Processing and Evaluation**

- 1) Assist with posting and processing comments on proposed rulemakings.
- 2) Support the evaluation and summarization of comments on proposed rulemakings for FinCEN review and approval.
- 3) Assist in cataloging and characterizing major issues identified in comment letters to demonstrate the depth and breadth of support for particular issues identified in those letters.
- 4) Support cataloging of regulatory text proposals put forward by commenters.